



2026 Apr 08

Submitted via Electronic Portal

Docket Number USTR-2026-0134

Megan Grimball, Co-Chair

Section 301 Committee

Office of the United States Trade Representative

600 17th St. NW

Washington, D.C. 20508

RE: Section 301 Investigation of Acts, Policies, and Practices of Various Economies Related to the Failure to Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced with Forced Labor.

Dear Ms. Grimball and Members of the Section 301 Committee:

Firsd Tea North America respectfully submits these comments in response to USTR's Section 301 investigation regarding acts, policies, and practices related to the failure to prohibit and effectively prevent the importation of goods produced with forced labor. Firsd Tea is an importer and distributor involved in the U.S. market for tea, herbal infusions, and botanical ingredients. The company is one of the chief importers of Chinese tea, especially Chinese specialty teas and Chinese matcha in the United States.

Firsd Tea requests that black and green teas (HTS codes beginning: 0902) and instant tea/extracts (Instant/Extracts of Tea (2101.20 series) be exempted from any proposed tariff. As the Marketing Director of the leading importer of specialty tea and Chinese matcha in the US, I appreciate the opportunity to present testimony to the Section 301 Committee about the importance of the tea industry in the United States and the disproportionate economic harm these tariffs would have on US tea businesses and US consumers. Below is a summary of my proposed testimony. The US tea industry, particularly specialty tea, is reliant on continued access to Chinese tea imports for present and future growth and success.



SUMMARY OF PROPOSED TESTIMONY

- First Tea North America, LLC is a US company importing and distributing Chinese teas to the US tea industry and tea businesses. The company is the largest importer of Chinese specialty tea in the US. Tea is a growing industry in the US, with Chinese tea and matcha as a significant driver of that growth.
- Chinese teas have a significant historical and cultural value to America. The Boston Tea Party and similar events of the American Revolution were motivated by onerous and unreasonable impediments to the import of Chinese tea. As the US celebrates the 250th anniversary of the signing of the Declaration of Independence, First Tea recognizes the meaningful and ongoing value of the Chinese tea trade with the United States.
- The purpose of the tariffs is to affect China's practices relating to forced labor. Imposing punitive tariffs on tea would not be effective in changing these practices because tea exports are a very small part of China's overall tea sector. Most tea that China produces is consumed domestically.
- The China tea trade does not suffer from forced labor, as the majority of China's tea farmers are smallholder farmers whose farms are family businesses. Further, punitive tariffs on tea would have a disproportionate economic impact on small and medium-sized enterprises in the US because most of the US importers (those that pay the tariffs) are small and medium-sized businesses.
- The United States is not a tea producing nation. There is no US-grown tea of meaningful commercial volume that needs to be protected by tariffs, nor are there any farm-based jobs that would be protected.
- Like wine or coffee, tea varies dramatically due to local terroir (geography, climate, and local manufacturing techniques). China has many unique teas that are unavailable elsewhere, due to their unique cultivars, terroirs, and processing methods. In the area of specialty tea, many teas are unable to be sourced anywhere else in the world.

- 
- China's tea production is a rural-based, long term crop that was not designed to capture foreign business. According to recent China Bureau of Statistics and International Tea Committee reports:
 - China produces approx 8.2 billion pounds of tea and exports 815 million pounds for domestic consumption. That means that roughly 90% of China's tea stays in China
 - China exports 26 million pounds to the US (less than 1% of total production, and less than 4% of total export volume)

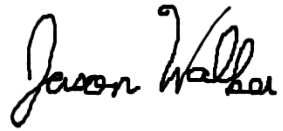
This quantity is not a significant amount of tea trade from the perspective of Chinese tea producers.

- The imposition of tariffs on Chinese tea will not impact the Chinese producer, exporter, or government. However IT WILL negatively impact the US consumer.
 - About one-third of US green tea imports originate from China. This includes high value specialty teas, matcha, and base green teas for bottled green tea beverages
 - About one-third of US organic tea imports originate from China. As US consumers are encouraged to make healthy, nutritious beverage decisions, China tea stands out as an important contributor to Making America Healthy Again.

In my more than eight years of work with Firsd Tea, the role of China's tea trade has remained consistent in these levels of performance, showing that Chinese tea is a necessary and valued part of the US tea industry, and a benefit to US tea consumers.

Firsd Tea strongly urges you to exempt tea from the proposed Section 301 actions as it will negatively impact American businesses and citizens while having no effect on forced labor issues in China. I look forward to the opportunity to provide my testimony to the Section 301 Committee.

Sincerely,

A handwritten signature in black ink that reads "Jason Walker". The signature is fluid and cursive, with the first name "Jason" and last name "Walker" clearly distinguishable.

Jason Walker

Marketing Director

Firsd Tea North America, LLC

jason.walker@firsdtea.com

Phone: 201.528.7916